

Ashok Yadav v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 22 January 2026 · Writ-C No. 2240 of 2026 · **Writ disposed of; petitioner relegated to a fresh Clause 6.5 representation before the Junior Engineer.**

HEADNOTE

Where a consumer seeks quashing of electricity bills alleged to be inflated without increase in load or consumption, and the licensee points to Clause 6.5 of the U.P. Electricity Supply Code, 2005 as the forum for disputing bill correctness, the High Court will not examine the merits. The petition is disposed of permitting a fresh Clause 6.5 representation before the Junior Engineer, Purvanchal Vidyut Vitran Nigam Ltd., Ghazipur, to be decided in accordance with law.

FACTUAL SUMMARY

Ashok Yadav sought quashing of electricity bills dated 9 May 2025 and 29 August 2025 issued by the Electricity Department. His grievance was an inflated bill of Rs.2,23,451 without any increase in load or consumption. He had represented to the respondent-authority, but no action had been taken. Counsel for the Purvanchal Vidyut Vitran Nigam Ltd. respondents submitted that a dispute as to correctness of a bill is governed by Clause 6.5 of the U.P. Electricity Supply Code, 2005, and that the petitioner should be relegated to that authority.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Billing objection — alternative remedy; representation directed to Junior Engineer

HOLDING

A writ seeking quashing of disputed electricity bills is disposed of without examining merits where the licensee invokes Clause 6.5 of the U.P. Electricity Supply Code, 2005 as the forum for disputing bill correctness. The consumer may file a fresh representation under Clause 6.5, raising all grievances, before the Junior Engineer within one month; the Engineer shall consider and decide it in accordance with law within one month of receipt. ¶ 4-5

FLAG The Court directed the Clause 6.5 representation to respondent no.4, Junior Engineer, PVVNL, Ghazipur. The ordinary 6.5 channel (catalog: billing-objection-to-executive-engineer-under-6.5) is the Executive Engineer. The order does not explain why the Junior Engineer is the deciding authority. Not silently corrected.

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Where a consumer seeks quashing of electricity bills alleged to be inflated without increase in load or consumption, and the licensee points to Clause 6.5 of the U.P. Electricity Supply Code, 2005 as the forum for disputing bill correctness, the High Court will not examine the merits.. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE BILLS DATED 9 MAY 2025 AND 29 AUGUST 2025

The Court expressly did not advert to whether the bills, including the alleged inflated demand of Rs.2,23,451 without increase in load or consumption, were incorrect. ¶ 2-5

NOT DECIDED — INACTION ON THE PETITIONER'S EARLIER REPRESENTATION

The petitioner said he had already represented and no action had been taken. The Court did not decide that complaint; it permitted a fresh Clause 6.5 representation. ¶ 3-5

